

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE: LAUREN LASANTE
License No. 068.0047526

DOCKET No. 2025-8

Appearances:

Prosecutor:	Rachel Heath, Esq.
Respondent:	Did not appear

Hearing Officer: Wesley M. Lawrence

ORDER ON MOTION FOR DEFAULT

Based on the evidence before me, I find as follows:

1. At all relevant times, Respondent, Lauren Lasante, was licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor under license number 068.0047526. This license was originally issued on December 17, 2009 and expired on January 31, 2025. The State of Vermont also licensed Respondent as a Licensed Alcohol and Drug Abuse Counselor under license number 151.0127657. That license was first issued on January 24, 2017 and expired on January 31, 2023.
2. I held a Default Hearing in the above matter on March 14, 2025 pursuant to 3 V.S.A. §129(f) and 3 V.S.A. §809(d). This public hearing was held electronically via Microsoft Teams pursuant to a Notice of Hearing.
3. On January 31, 2025, the State moved for Respondent to be found in default because she has not responded to the Specification of Charges in this matter.
4. The State filed the Specification of Charges in this matter on January 9, 2025. Julie Bowen, the Docket Clerk for the Office of Professional Regulation, testified that she sent the Specification of Charges to Respondent on January 16, 2025 by first class mail, certified mail, and e-mail. The mailed versions were sent to two different addresses on file. The first class, certified and e-mailed versions of the Specification of Charges were not returned as undeliverable. The certified mail return receipt was signed, but by someone other than Respondent. I find that notice of the Specification of Charges was proper.
5. Ms. Bowen testified that she sent the Notice of Hearing for Default Judgment to the Respondent on February 6, 2025 by regular mail, certified mail, and e-mail. The mailed versions were sent to two different addresses on file. None of these were returned as undeliverable. I find that notice of the Default Hearing was proper.

6. Respondent has not filed an answer, has not acknowledged in any way the Specification of Charges, and did not appear for the Default Hearing in this matter.
7. Under the Administrative Rules of the Office of Professional Regulation, Rule 3.4, a default may be entered when an answer is not filed within the required time period.
8. I find Respondent to be in default based on Ms. Bowen's testimony, the State's Motion for Default and by taking official notice of the Office of Professional Regulation file. The allegations contained in the Specification of Charges are therefore treated as the facts upon which the Board of Nursing may issue an order of professional discipline. *See* OPR Rule 3.4, 3 V.S.A. §809(d), and 3 V.S.A. §814(c).
9. I shall treat the factual allegations in the Specification of Charges as proven. *See* O.P.R. Rule 3.4.
10. I find that Respondent committed five (5) violations:
 - 3 V.S.A. § 129a(a)(3) (Failing to comply with provisions of federal or State statutes or rules governing the practice of the profession, incorporating 32 V.S.A. § 631(a)(1) ("No person shall knowingly present, or cause to be presented, a false or fraudulent claim for payment or approval");
 - 26 V.S.A. § 3271(a)(3) (Conduct that evidences unfitness to practice clinical mental health counseling);
 - 3 V.S.A. § 129a(b)(2) (Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (2) failure to conform to the essential standards of acceptable and prevailing practice);
 - 3 V.S.A. § 129a(a)(28) (Engaging in conduct of a character likely to deceive, defraud, or harm the public); and
 - 3 V.S.A. § 129a(a)(15) (Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the profession)

as set forth at length in the Specification of Charges, which is incorporated by reference as if set forth at length herein, and should be appended to this decision.

11. The State recommended that the Respondent's license be revoked. I find this to be an appropriate sanction.

PROPOSED ORDER

Consistent with the above, and the recommendation of the State, the Board of Allied Mental Health Practitioners hereby **ORDERS** that Respondent's license as a Licensed Clinical Mental Health Counselor is **REVOKED**.

I hereby forward the above Proposed Order to the Board of Tattooists and Body Piercers with the recommendation that the Board approve it.

DATED at Montpelier, Vermont this 17th day of March 2025.



Hearing Officer,
Office of Professional Regulation

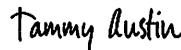
The Board of Allied Mental Health Practitioners considered the Proposed Order and its basis, above, on March 20, 2025.

After considering the Proposed Order and its basis, above, the Board of Allied Mental Health Practitioners takes the following action:

- ☐ Rejects the Hearing Officer's recommendation, and schedules the matter for hearing.
- ☐ Schedules the matter for additional evidence.
- ☒ Accepts the Hearing Officer's recommendation and orders the recommended discipline as set forth in the Proposed Order above.

SO ORDERED,

DocuSigned by:



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Board of Allied Mental Health Practitioners

OFFICE OF PROFESSIONAL REGULATION DATE OF ENTRY: 3/20/25

APPEAL RIGHTS

This is a final administrative determination by the Vermont Board of Allied Mental Health Practitioners. A party aggrieved by a final decision of a board or hearing authority may appeal this decision by filing a written Notice of Appeal with the Director of the Office of Professional Regulation, Vermont Secretary of State, 89 Main Street, Floor 3, Montpelier, VT 05620-3402 within 30 days of the entry of this order.

If an appeal is filed, the Director of the Office of Professional Regulation shall assign the case to an appellate officer. The review shall be conducted on the basis of the record created before the Board. In cases of alleged irregularities in procedure before the board, not shown in the record, proof on that issue may be taken by the appellate officer. 3 V.S.A. §§129(d) and 130a.

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BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:	)	
Lauren Lasante	)	Docket No. 2025-8
License No. 068.0047526	)	
	)	

MOTION FOR DEFAULT

NOW COMES the State of Vermont, by and through Prosecuting Attorney Rachel Heath, and pursuant to Rule 3.3 of the Administrative Rules of Practice for the Office of Professional Regulation (“ARPOPR”), hereby requests that a hearing be scheduled to find Respondent Lauren Lasante (“Respondent”) in default for the reasons stated in the following Memorandum of Law.

MEMORANDUM OF LAW

Rule 3.3 of ARPOPR requires a respondent to file an answer to a specification of charges “within 20 days of the date on which the notice of charges was mailed by the Director.” Under the Rules, if a respondent fails to file a timely answer, a default hearing shall be conducted. ARPOPR 3.4. At the default hearing, “the allegations of the charges will be treated as proven and disciplinary action will be taken.” *Id.*

In this matter, Respondent has failed to file a response to the charges and is, therefore, in default. The State filed the Specification of Charges against Respondent on January 9, 2025. Respondent was notified of the charges by letter from the Docket Clerk of the Office of Professional Regulation, sent by both certified and first class mail, and by email, on January 10, 2025. *See* ARPOPR 3.2. Respondent’s answer was due on or before January 30, 2025. *See* ARPOPR 3.4. As of this date, Respondent has failed to submit an answer.

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WHEREFORE, in accordance with ARPOPR 3.3, et seq., the State respectfully requests that the Board schedule a default hearing and find Respondent in default.

DATED at Montpelier, Vermont this 31st day of January 2025.

STATE OF VERMONT
SECRETARY OF STATE

By: /s/ Rachel Heath
Rachel Heath
Prosecuting Attorney
Rachel.heath@vermont.gov

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SPECIFICATION OF CHARGES

NOW COMES the State of Vermont and makes the following charges against Respondent Lauren Lasante:

Board Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the “Board”) has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapters 65 and 78; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation (“OPR”).

Statement of Facts

2. Lauren Lasante (“Respondent”) of Middletown Springs, Vermont is licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor under license number 068.0047526. This license was originally issued on December 17, 2009 and expires on January 31, 2025.
3. The State of Vermont also licensed Respondent as a Licensed Alcohol and Drug Abuse Counselor under license number 151.0127657. This license was first issued on January 24, 2017 and expired on January 31, 2023.
4. At all relevant times, Respondent was a solo practitioner who provided mental health services and substance abuse counseling in southern Vermont.
5. Between approximately 2012 to April 2023, Respondent provided mental health and substance abuse counseling to Patient AR.
6. Beginning in 2021, Patient AR noticed a shift in her therapeutic relationship with Respondent.
7. Patient AR felt that instead of receiving counseling from Respondent, she was providing the counseling to Respondent.

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8. Patient AR found she was meeting approximately monthly rather than weekly because Respondent was more frequently missing appointments.
9. Despite Patient AR meeting approximately monthly with Respondent, Respondent billed Medicare for 157 one-hour psychotherapy sessions with Patient AR between January 14, 2021 to September 2, 2022.
10. Even if Respondent had met with Patient AR weekly during this time period, that would only account for 85 sessions.
11. In December 2022, the Vermont Department of Health Access terminated Respondent's ability to bill Medicaid.
12. While Patient AR used to meet with Respondent at her office, since 2020 Respondent no longer had an office space.
13. Instead, Respondent met with Patient AR in Respondent's car and drove Patient AR around while conducting therapy sessions.
14. Often, Respondent's teenage daughter was also in the vehicle.
15. Respondent informed an OPR investigator that she and Patient AR would drive around and talk or stop and get coffee.
16. According to Patient AR, Respondent would stop at places, like stores or Patient AR's doctor appointments.
17. Respondent went into the room and stayed with Patient AR during her doctor appointments.
18. Respondent was supposed to assist Patient AR with obtaining disability benefits and attend her disability hearing on April 12, 2023.
19. Respondent did not come to this hearing, nor did she provide Patient AR with the documentation she needed from Respondent for this hearing.
20. Ultimately, therapy between Respondent and Patient AR stopped in approximately April 2023 without any transition or explanation.
21. The abrupt termination of therapy upset and angered Patient AR.
22. An OPR investigator requested records from Respondent on October 2, 2023.
23. Although Respondent acknowledged this request, Respondent never provided these records.

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24. On or about May 24, 2024, the Vermont Attorney General filed a civil action against Respondent alleging unlawful profit through knowing and reckless abuse of the Medicaid program.
25. According to the complaint, the Special Investigations Unit made repeated records requests from Respondent for two years. Respondent never provided these records.
26. According to the complaint, Respondent billed individual and family psychotherapy sessions under CPT code 90846, which is a code for family psychotherapy without the patient for up to 50 minutes, over 100 times per calendar year between January 2019 and September 2022.
27. Among other limitations, CPT code 90846 may not be billed more than 12 times per calendar year per patient.
28. According to the complaint, invoicing this frequency of CPT code 90846 is implausible for a new solo practitioner.
29. According to the complaint, Respondent presented approximately 164 claims for payment and received approximately \$148,948.49 in Medicaid funds without providing the required documentation that the services were provided.
30. The complaint sought damages under the False Claims Act (32 V.S.A. 631(a)(1)), and under the following common law theories: unjust enrichment, fraud, and breach of contract.

Violation One: 3 V.S.A. § 129a(a)(3) Failing to comply with provisions of federal or State statutes or rules governing the practice of the profession, incorporating 32 V.S.A. § 631(a)(1) (“No person shall knowingly present, or cause to be presented, a false or fraudulent claim for payment or approval”).

31. The State re-alleges and incorporates Paragraphs 2 through 30 above.
32. Vermont law requires licensed clinical mental health counselors to comply with provisions of federal and State statutes and rules governing the practice of the profession.
33. Vermont law prohibits an individual from knowingly presenting a false claim for payment or approval. 32 V.S.A. § 631(a)(1). A claim means any request or demand for money that is presented to an officer, employee, or agent of the State. 32 V.S.A. § 630(1)(A).
34. Medicaid is a government program the State administers and that the State and federal governments fund jointly to provide health coverage benefits to eligible individuals.

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35. Paragraphs 2 through 30 above demonstrate that during the relevant time, Respondent failed to comply with State statute because Respondent knowingly presented claims for services not rendered, i.e. therapy sessions that did not occur, in violation of 32 V.S.A. § 631(a)(1).

36. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(3), incorporating 32 V.S.A. § 631(a)(1).

Violation Two: 26 V.S.A. § 3271(a)(3) Conduct that evidences unfitness to practice clinical mental health counseling.

37. The State re-alleges and incorporates Paragraphs 2 through 30 above.

38. Vermont law prohibits a licensed clinical mental health counselor from engaging in conduct that evidences unfitness to practice clinical mental health counseling.

39. Paragraphs 2 through 30 above demonstrate that Respondent engaged in conduct that evidences unfitness to practice clinical mental health counseling by knowingly billing Medicaid for services not rendered, failing to comply with records requests from the State, conducting therapy sessions in her car with her daughter present, failing to attend Patient AR's disability hearing or providing her with the necessary paperwork after stating she would, and abruptly terminating a therapy relationship without any communication to Patient AR.

40. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 26 V.S.A. §3271(a)(3).

Violation Three: 3 V.S.A. § 129a(b)(2) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (2) failure to conform to the essential standards of acceptable and prevailing practice.

41. The State re-alleges and incorporates Paragraphs 2 through 30 above.

42. Under Vermont law, a licensed clinical mental health counselor must practice competently by conforming to the essential standards of acceptable and prevailing practice.

43. As a licensed clinical mental health counselor, Respondent is subject to the standards of acceptable care and prevailing practice, which requires a licensed clinical mental health counselor to conduct counseling sessions in an appropriate, private location.

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44. Paragraphs 2 through 30 above demonstrate that Respondent failed to conform to the essential standards of acceptable and prevailing practice when she conducted sessions in her car with her daughter present, which is not an appropriate private setting.
45. Essential standards of the profession prohibit a licensed clinical mental health counselor from billing for services not actually rendered.
46. Paragraphs 2 through 30 above demonstrate that Respondent failed to conform to the essential standards of acceptable and prevailing practice when she billed for 157 sessions for Patient AR, whereas, according to Patient AR, they only met monthly and even had they met weekly that would only account for 85 sessions.
47. The Administrative Rules of the Board of Allied Mental Health Practitioners ("ARBAMHP") provide that the ethical codes of the National Board for Certified Counselors ("NBCC") and the American Counseling Association ("ACA") establish the standard of practice and fitness within the Allied Mental Health professions. See ARBAMHP Rule 6.6.
48. Essential standards of acceptable and prevailing practice for Licensed Clinical Mental Health Counselors prohibit counselors from abandoning or neglecting clients in counseling. See ACA Code of Ethics, Standard A.12.
49. Paragraphs 2 through 30 above demonstrate that Respondent failed to conform to the essential standards of acceptable and prevailing practice when she abandoned or neglected a client by abruptly stopping counseling with Patient AR without any communication, discussion, or explanation.
50. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 3 V.S.A. § 129a(b)(2).

Violation Four: 3 V.S.A. § 129a(a)(28) Engaging in conduct of a character likely to deceive, defraud, or harm the public.

51. The State re-alleges and incorporates Paragraphs 2 through 30 above.
52. Under Vermont law, a licensed clinical mental health counselor is prohibited from engaging in conduct of a character likely to deceive, defraud, or harm the public.
53. Paragraphs 2 through 30 above demonstrate that Respondent engaged in conduct of a character likely to deceive, defraud, or harm the public when she billed for services that she did not actually render, failed to provide medical records to the State when requested, and abruptly ended her treating relationship with Patient AR.

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54. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 3 V.S.A. § 129a(a)(28).

Violation Five: 3 V.S.A. § 129a(a)(15) Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the profession.

55. The State re-alleges and incorporates Paragraphs 2 through 30 above.
56. Under Vermont law, a licensed clinical mental health counselor must exercise independent professional judgment in the performance of licensed activities when such judgment is necessary to avoid action repugnant to the profession.
57. Paragraphs 2 through 30 above demonstrate that Respondent failed to exercise independent professional judgment in the performance of licensed activities when such judgment is necessary to avoid action repugnant to the profession when she billed Medicaid for services not rendered, failed to comply with State records requests, conducted therapy sessions in her car with her daughter, and abruptly terminated her treating relationship with Patient AR.
58. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 3 V.S.A. § 129a(a)(15).

Relief Requested

WHEREFORE, the State of Vermont respectfully requests that the license of Lauren Lasante be warned, reprimanded, suspended, revoked, limited, conditioned, or otherwise disciplined.

DATED at Vermont this 9th day of January 2025.

STATE OF VERMONT
SECRETARY OF STATE

By: /s/ Rachel Heath
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